

Deposition of Mara Ellison

Taken: September 16, 2025 **Excerpts filed:** December 12, 2025 **Action:** Mara Ellison v. Officer Nolan Rusk, No. SYN-WDVA-25-CV-0733

The following fictional excerpts were selected from Ellison's sworn examination. Counsel agreed that the reporter's ordinary opening admonitions, objections not requiring an answer, and exhibit-marking formalities could be condensed so long as substantive answers remained intact. The testimony is a party account, not an adjudicated fact.

Q. Please state your name and February 2025 address.

A. Mara Ellison. I lived in apartment C-12 at Larkspur Court, 1844 Holloway Road in Alder Creek.

Q. Do you understand you must answer truthfully even though this is a fictional training transcript?

A. Yes. I also understand every person and place in it is invented.

Q. Are you challenging why your sister called for help?

A. No. Iris was worried. I wish the response had gone differently, but I am not suing her and I am not claiming the officers had no right to check on me.

Q. What part of the encounter is your claim about?

A. The force after Officer Rusk grabbed my wrist, especially the drive-stun cycle while he took me down.

Events before the officers arrived

Q. Why did Iris believe you needed a welfare check?

A. I had missed medication and was overwhelmed. I was having trouble sorting out several things that happened that day. I wanted quiet and told her not to crowd me.

Q. Had you threatened to hurt yourself or another person?

A. No. I did not have a plan or intent to hurt anyone. I did not threaten Iris.

Q. Did you possess a weapon?

A. No. I had my phone and apartment keys. I put both beside me near the wall before the police came.

Q. Did you strike Iris when she touched your shoulder?

A. No. I pulled away and told her I needed space. She went to the parking lot.

Q. Where were you immediately before first contact?

A. Sitting in the exterior breezeway by my door. It was lit. No neighbor was standing beside me, and I was not at the stairs.

Q. Were you trying to leave?

A. No. I planned to stay by my apartment. I did not move toward a car, stairs, or road.

Q. Do you contend being in distress made any physical direction unlawful?

A. No. I contend the force chosen was too much for what I actually did.

First contact in the breezeway

Q. What did you first see?

A. Officer Rusk came up the stairs. Officer Vega was behind him. Rusk asked if I was Mara, and I said yes.

Q. What did your hands contain?

A. Nothing. They were near my knees. My phone and keys were on the concrete by the wall.

Q. Did Rusk explain the purpose?

A. He said Iris was worried and they were checking that I was safe. I said I needed space and was not going anywhere.

Q. Why did you object when he asked about medication?

A. I felt exposed and crowded. I told him that was between me and my doctor. I did not threaten him.

Q. Did he ask you to stand?

A. Yes. He told me to stand slowly and show my hands. I shifted because I was deciding how to stand without him closer to me.

Q. Did you lunge or start running?

A. No. I never got a chance to stand freely. He stepped in and took my left wrist.

Q. At what time does the recording show that?

A. About 19:53:02. I understand both sides agree that is when the physical restraint and seizure started.

Wrist grasp and pulling

Q. Describe the grasp.

A. Rusk caught my left wrist and squeezed while pulling it away from where I had it. The pressure hurt immediately.

Q. Did you comply with his instruction to hold still?

A. Not completely. I turned and pulled my wrist toward my body. I told him not to grab me and said it hurt.

Q. You agree you were pulling?

A. Yes. I disagree about what that meant. I was recoiling from pain. I was not trying to attack him or take anything.

Q. Where was your right hand before the camera became blocked?

A. In front of me and away from his belt. Everything moved quickly, but I did not direct it at him.

Q. Did you try to flee down the breezeway?

A. No. I turned my torso away from the wrist pressure. I did not move toward the stairs.

Q. Did Rusk warn that he would use the energy device?

A. I do not remember a clear warning identifying it before I felt it. There were overlapping commands.

Q. Are you saying no physical restraint was permissible?

A. No. My testimony is that one painful wrist hold did not make a five-second drive-stun necessary when I was not a danger.

The obstructed seconds before activation

Q. The critical obstruction begins at 19:53:08. What do you remember during the first part?

A. I remember trying to turn away and Rusk keeping my left wrist. I felt pressure in my shoulder as my arm was controlled.

Q. Did you strike his forearm?

A. No. I did not punch, slap, or intentionally hit his arm. Bodies and arms touched while he held me, but I did not strike him.

Q. Did you reach toward his duty belt?

A. No. I never reached for his gun, energy device, radio, cuffs, or anything on the belt.

Q. Rusk says you moved a hand toward that area.

A. I know he says that. It did not happen. My movement was away from the grip, not toward his equipment.

Q. What do you understand the audio captures at 19:53:11?

A. He says “stop pulling,” and I say “you’re hurting me.” That matches my memory that I pulled because the grip hurt.

Q. What caused the dull sound afterward?

A. I cannot identify it. It could be a body, shoe, or rail. I will not claim I can see or hear something the recording does not show.

Device cycle and descent

Q. Describe the moment you felt the device.

A. I heard more commands and then felt intense burning pain at my left side. My muscles tightened, and I cried out. Rusk was forcing me downward at the same time.

Q. How long did it last?

A. The later log says one five-second cycle, approximately 19:53:16 through 19:53:21. In the moment it felt longer, but I accept the recorded duration.

Q. Were probes fired?

A. No. I understand it was drive-stun contact. There were two contact marks, not embedded probes.

Q. Immediately before activation, were you threatening an officer?

A. No. I was unarmed, had not struck anyone, had not reached for a belt, and was not fleeing. I was pulling from the painful wrist hold.

Q. Did Rusk use another cycle after you were down?

A. No. I allege one cycle. I do not accuse him of a second one.

Q. How did you reach the floor?

A. He directed and forced me down while the device was against me. I lost balance during the pain. I cannot separate every inch of his force from the electrical effect.

Q. Does the video show your hands then?

A. No. That is the part it cannot resolve.

Handcuffing and immediate statements

Q. What happened when the view cleared?

A. I was down. Vega came in on my right and tried to get my hand behind me. My shoulder hurt when my arm moved.

Q. Did you continue fighting after the energy stopped?

A. I was in pain and not perfectly still, but I did not try to hit or kick them. I was trying to understand which direction they wanted my hands.

Q. When were you cuffed?

A. The synchronized record says about 19:53:37. I heard Rusk announce it.

Q. What did you report immediately?

A. That my shoulder and wrist hurt and that it burned. I also said I never tried to take anything and pulled because he hurt me.

Q. Did Rusk or Vega use another weapon after restraint?

A. No. Vega slowed down and told me one person would talk. That helped me answer.

Q. Was a weapon recovered from you?

A. No. The officers collected my phone and keys. I had no weapon.

Q. Were you arrested?

A. No. Medical personnel came, and I went to the hospital. There was no booking or criminal charge.

Physical treatment and recovery

Q. Identify the injuries you attribute to the encounter.

A. An abrasion at my left wrist, two superficial contact burns on my left side, and a left-shoulder strain. I had acute pain and temporary difficulty lifting and carrying things.

Q. Did you suffer a fracture?

A. No. Hospital wrist and shoulder imaging showed no fracture or dislocation. I have never claimed a broken bone in this case.

Q. What treatment did you receive?

A. Paramedic Mateo Cole cleaned and dressed the wrist and contact areas and supported my arm. The hospital repeated the examination, took images, redressed the areas, gave non-opioid pain treatment, and recommended conservative shoulder care.

Q. How long did symptoms last?

A. The burns and abrasion improved relatively quickly. Shoulder soreness lasted longer, especially overhead, but it improved. I am not claiming permanent paralysis or surgery.

Q. Did you receive crisis-related services?

A. Yes. Beginning February 4, I worked on medication reconciliation, sleep, reduced stimulation, and a plan for one person to speak at a time. By February 10 the acute crisis had improved.

Q. Does receiving mental-health care prove what happened physically?

A. No. It explains why Iris called and part of my aftermath. It does not replace the camera or testimony.

Review of the recordings

Q. Have you watched both certified camera working copies?

A. Yes, with counsel. Watching was difficult, but I reviewed the full relevant sections rather than only clips.

Q. Does Rusk's camera show your hands continuously?

A. No. Its view is blocked from 19:53:08 until 19:53:22. That covers the dispute about a strike and belt reach.

Q. Does Vega's camera fill the gap?

A. No. Rusk's body and the breezeway block her angle. She moves closer, but the hands are not reliable during the key part.

Q. Does any video blatantly contradict your account?

A. No. The recordings show I turned and pulled. My account admits that. They do not show me striking him or reaching for equipment.

Q. Do they conclusively prove your account?

A. They prove some surrounding things, like empty hands at first, the wrist grasp, one cycle, and me down afterward. They cannot visually prove the hidden hand movement. My testimony is evidence of what happened there.

Q. Why is that distinction important to you?

A. Because I do not want missing images filled with either side's preferred story. A court can apply whatever factual assumption the procedural rule requires without pretending the camera saw through a body.

Prior statements and memory boundaries

Q. Did you tell the emergency clinician the same basic account?

A. I said the officer grabbed my wrist, I pulled because it hurt, and he used the device while taking me down. I denied hitting him or reaching for equipment.

Q. Did you use the exact synchronized times that night?

A. No. I learned those from discovery. My first descriptions were based on sequence, not a clock.

Q. Are there details you do not remember?

A. Yes. I cannot identify every command, the source of every contact sound, or exactly how each foot moved. The pain and closeness made the seconds confusing.

Q. Have you changed your testimony to match a video?

A. I refined timing where the records were better than my estimate. I did not add a claim that a hidden frame proves my hand position. I have consistently denied striking or reaching.

Q. Did you tell Iris you wanted officers harmed or punished?

A. No. I told her I was angry and frightened. My lawsuit seeks accountability for the force, not a false statement about what the recordings show.

Q. Are you claiming every touch by Rusk was unconstitutional?

A. No. The claim challenges the drive-stun force on my facts. I am not contesting the welfare call, the initial legal authority to seize me, or Vega's later effort to control a hand.

Assumed facts, corrections, and signature

Q. Summarize the facts you ask a court to assume when evaluating Rusk’s legal immunity argument.

A. I was unarmed and distressed. I did not commit a crime, threaten anyone, flee, strike him, grab him, or reach for his equipment. I pulled and did not comply promptly because his wrist grip hurt. There was no immediate safety exigency when he used one drive-stun cycle while forcing me down.

Q. Does that summary ask the court to decide you are truthful on an interlocutory appeal?

A. No. It asks the court to answer the legal question on my supported version. A jury can resolve disputed history later if necessary.

Q. Have you reviewed these excerpts?

A. Yes. One correction changes “right shoulder” in the rough transcript to “left shoulder.” Another clarifies that my phone and keys were on the concrete, not inside my coat. I make no other substantive correction.

Q. Do you reserve the right to review the full reporter transcript under the governing procedure?

A. Yes.

The fictional reporter certifies that these excerpts accurately reproduce the selected testimony and corrections. The filing date is December 12, 2025. No actual witness testified, and the document supplies no medical or legal advice. Its purpose is to preserve Ellison’s account, admissions, and limits without converting disputed testimony into a finding.